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Case Number: 25STCV01982 Hearing Date: July 8, 2026 Dept: 224

Ahmadi v. Wilson et al.,

TENTATIVE RULING

The motion is DENIED as MOOT as to the Wilson Family Trust Dated December 20, 2002, no default having been entered against it.

The motion is DENIED as MOOT as to Defendant Evan N. Wilson, as he has been dismissed from this action.

The Motion to Set Aside Default is DENIED as to Kathleen D. Wilson.

Introduction

On January 22, 2025, Plaintiff Asma Alhamdi filed the Complaint in this action.

On September 25, 2025, Plaintiff effected personal service of the Summons and

Complaint on Defendants Kathleen D. Wilson and Evan N. Wilson.

On February 9, 2026, the Court entered the defaults of Defendants Kathleen D. Wilson and Evan N. Wilson.

On March 27, 2026, Defendants filed the instant Motion to Set Aside the Defaults Entered on February 9, 2026.

On May 6, 2026, Plaintiff filed an opposition to the Motion.

On May 7, 2026, the Court entered the default of Defendant Wilson Family Trust Dated December 20, 2002.

On May 8, 2026, Defendants filed a reply.

Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124 (*Luri*).)

The discretionary portion of section 473, subdivision (b) provides: “The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

The mandatory portion of section 473 requires the court to, “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ.

Proc., § 473, subd. (b).)

Personal service may be accomplished by personally delivering a copy of the summons and complaint to the person to be served. (Code of Civ. Proc., § 415.10.) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person being served, substitute service may be effected by leaving a copy of the summons and complaint at the person’s “dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of . . . a person apparently in charge . . . and by thereafter mailing a copy of the summons and complaint by first-class mail . . . to the person to be served at the place where a copy of the summons and complaint were left.” (Code of Civ. Proc., § 415.20, subd. (b).)

Motion to Set Aside Entry of Default

As an initial matter, the motion, by its terms, seeks to set aside “the defaults . . . entered on February 9, 2026.” The Court’s record reflects, however, that no default was entered against the Wilson Family Trust Dated December 20, 2002 until May 7, 2026, nearly six weeks after this motion was filed on March 27, 2026. When Defendants filed the motion, there was no default against the Trust in existence to challenge, and the motion accordingly was not, and could not have been, directed at the May 7, 2026 default. A motion cannot operate prospectively to vacate a default that had not yet been entered when the motion was filed, and neither Plaintiff’s opposition nor Defendant’s reply squarely addresses the later-entered default. In these circumstances, the Court declines to address the instant motion as to the Wilson Family Trust.

As to Defendant Evan N. Wilson, the Court’s records further confirm that Evan Wilson was dismissed from this action as of May 7, 2026. Accordingly, the Court proceeds on the merits below only as to Defendant Kathleen Wilson.

Relief Pursuant to CCP § 473(b)

Defendant first moves the Court to set aside the default pursuant to CCP § 473(b) on grounds of mistake, inadvertence, surprise, and excusable neglect.

As an initial matter, application for relief pursuant to CCP § 473(b) shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Defendant has attached a copy of the pleading she proposes to file — a proposed Answer with a general denial and affirmative defenses (Exhibit A).

The motion is also timely. The default of Kathleen Wilson was entered on February 9, 2026, and the motion was filed on March 27, 2026, well within the six-month period for discretionary relief under section 473(b).

To the extent that Defendant requests relief pursuant to the mandatory relief provision of CCP § 473(b), Defendant must file a declaration by Counsel attesting to Counsel's mistake, inadvertence, surprise, or neglect. Here, no such declaration has been filed. Counsel's declaration reflects that Mr. Horn was not retained until on or about March 18, 2026, after the February 9, 2026 defaults, and does not (and could not) attribute the defaults to his own fault. Mandatory relief is therefore inapplicable.

As to discretionary relief, Kathleen D. Wilson's own evidence establishes that she received actual notice of this lawsuit on or about January 31, 2025, more than thirteen months before the defaults were entered. (Wilson Decl. ¶ 4; Wong Decl. ¶ 5.) The evidence demonstrates that Wilson learned she had been sued, confirmed the filing through her brother's review of the docket, and then, by her account, elected to wait to be formally served rather than appear or contact Plaintiff's counsel. (Wilson Decl. ¶¶ 5-7; Wong Decl. ¶ 5-6.) She took no further action until Wong observed the defaults on or about March 4, 2026. (Wilson Decl. ¶ 8; Wong Decl. ¶ 8.)

A party who has actual knowledge of a pending action for over a year is not “unexpectedly placed to his injury without any default or negligence of his own” when a default is later entered; that is not “surprise” within the meaning of section 473(b). (Credit Managers Assn. v. National Independent Business Alliance (1984) 162 Cal.App.3d 1166, 1173.) Nor does reliance on a relative to monitor the docket transform a prolonged, informed decision to do nothing into excusable neglect. (Hopkins & Carley v. Gens (2011) 200 Cal.App.4th 1401, 1410; Shapiro v. Clark (2008) 164 Cal.App.4th 1128 [reliance must be reasonable under the circumstances].) Based on the foregoing, the Court is not inclined to afford discretionary relief pursuant to section 473(b).

The Motion to Set Aside the Entry of Default based on CCP §473(b) is DENIED.

Equitable Relief

Further, Defendant requests the Court to exercise its inherent equitable power to set aside the entry of default based on extrinsic fraud.

“In addition, the court has inherent equitable power to set aside a default judgment at any time for extrinsic fraud or mistake.” (Ibid.) “The court may grant relief under its inherent equity power if, because of the fraud of his opponent, the aggrieved party was prevented from presenting his claim or defense to the court.” (Id. at p. 750, citations omitted.) “Fraud is intrinsic and not a valid ground for setting aside a judgment when the party has been given notice of the action and has had an opportunity to present his case and to protect himself from any mistake or fraud of his adversary, but has unreasonably neglected to do so.” (Ibid.)

A party seeking equitable relief on the grounds of extrinsic fraud or mistake must show the following three elements: (1) a meritorious defense; (2) a satisfactory excuse for not presenting the defense in the first place; and (3) diligence in seeking to set aside the default judgment once discovered. (Ibid.) Extrinsic mistake “is not so much the fraud or other misconduct of one of the parties as it is the excusable neglect of the defaulting party to appear and present his claim or defense. If that neglect results in an unjust judgment, without a fair adversary hearing, the basis for equitable relief on the ground of extrinsic mistake is present.” (Mechling v. Asbestos Defendants (2018) 29 Cal.App.5th 1241, 1246.) “When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances.” (Ibid., emphasis in original.)

“When evaluating a motion to set aside a default judgment on equitable grounds, the court must weigh the reasonableness of the conduct of the moving party in light of the extent of the prejudice to the responding party.” (Lasalle v. Vogel (2019) 36 Cal.App.5th 127, 139, internal quotations omitted.)

Here, Kathleen Wilson has not carried her burden on any of the three required elements, and the equities do not favor relief. Although her proposed Answer arguably provides a meritorious defense, Wilson has not shown a satisfactory excuse for failing to appear. By her own evidence, she received actual notice of this action more than thirteen months before the defaults were entered, confirmed the filing through her brother's review of the docket, and then elected to wait to be served rather than appear or contact Plaintiff's counsel. (Wilson Decl. ¶¶ 4-7; Wong Decl. ¶¶ 5-6.) A defendant's informed decision to do nothing for over a year cannot support excusable neglect that underlies extrinsic mistake, and Wilson's reliance on a relative to monitor the docket does not render that inaction reasonable. To the extent Wilson premises the request on extrinsic fraud, she has made no showing that any conduct of Plaintiff prevented her from presenting a defense. Rather, she had notice and an opportunity to protect herself and unreasonably neglected to do so, which is not a ground for equitable relief.

Equitable relief is not warranted in these circumstances.

Relief Pursuant to CCP § 473.5

Defendant further moves to set aside the entry of default pursuant to section 473.5 of the Code of Civil Procedure.

Code of Civil Procedure, section 473.5 states in relevant part:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him_z or her_z in_z the_z action, he_z or she_z may serve and file a notice of motion to set aside_z the_z default or default judgment and for leave to defend the action._z The_z notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him_z or her_z; or (ii) 180 days after service on him_z or her_z of a written notice that_z the_z default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).) Additionally, the motion “shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

Knowledge of the action from a source other than the summons does not automatically bar relief, and fragmentary awareness, such as a *lis pendens* that does not disclose the causes of action or a claim for punitive damages, may be too incomplete to constitute actual notice or to afford a genuine time to defend. (Olvera v. Olvera (1991) 232 Cal.App.3d 32, 40–41.)

The question is not whether Defendant knew that some lawsuit existed, but whether her non-service knowledge was complete and timely enough to give her a genuine opportunity to defend. The Court finds that it was. Here, Wilson provides that she learned on or about January 31, 2025 that this Plaintiff had sued her by name, and she promptly confirmed the case and January 22, 2025 filing date through her brother, attorney Colin Wong, who reviewed the docket. (Wilson Decl. ¶¶ 4-6; Wong Decl. ¶¶ 5-6.) Through counsel with docket access, she had the means to learn the nature of the claims at any time during the following thirteen months. That is not the incomplete awareness Olvera found insufficient. It is the timely, actionable notice that supports denial of relief.

Wilson also cannot satisfy the statute's requirement that her lack of actual notice "was not caused by . . . inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b).) Having learned she was sued and confirmed the filing through counsel, she elected to wait to be served and took no protective step for over a year. (Wilson Decl. ¶¶ 7-8; Wong Decl. ¶¶ 6, 8.) Any gap in her notice resulted from that inaction.

The Motion to Set Aside the Entry of Default based on CCP § 473.5 is DENIED.

Conclusion

The motion is DENIED as moot as to the Wilson Family Trust Dated December 20, 2002, no default having been entered against it.

The motion is DENIED as moot as to Defendant Evan N. Wilson, as he has been dismissed from this action.

The Motion to Set Aside Default is DENIED as to Kathleen D. Wilson.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.